

Consent for Data Processing

Polonez cooperates with Karex Paczka sp. z o.o., a trustful customs agency, to ensure smooth customs clearance of your package. Your consent to process your personal data gives a possibility for Karex Paczka to organize all necessary customs procedures on your behalf and in full compliance with all regulatory requirements.

The General Data Protection Regulation is going to apply from 25 May 2018, standardizing the principles of processing personal data in the European Union. On account thereof, we would like to inform you that:

The Controller, i.e., the entity that makes decisions on how your personal data will be used, is the following entrepreneur:

KAREX PACZKA SP. Z O.O., ul. Młodości 67, 42-215 Częstochowa KRS [National Court Register]: 0001089708, NIP [Tax Identification Number]: 573-020-95-25, REGON number: 150047904, EORI: PL573020952500000

You can contact the data protection officer at:

IOD KAREX PACZKA SP. Z O.O., ul. Młodości 67, 42-215 Częstochowa, email: rafal@karex.info.pl

Personal data will be processed under art. 6.1 b) and c) of the Regulation 2016/679 (EU) of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (the General Data Protection Regulation) (Official Journal of the EU L 119 of 4 May 2016) – for the purposes of delivering parcels and performing the obligations related to customs clearances, resulting from customs law provisions.

Article 6

Lawfulness of processing

1. Processing shall be lawful only if and to the extent that at least one of the following applies:

(b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

(c) processing is necessary for compliance with a legal obligation to which the controller is subject;

We will store your personal data in the period of provision of the service, as well as thereafter, for the following purposes: seeking the claims related to performance of the agreement, performing the obligations under the law, including, in particular, tax and accounting obligations, preventing abuse and frauds, for statistical and archiving purposes, for no more than 10 years of the end date of performance of the agreement.

The data subject is entitled to submit a complaint to the supervisory body. President of the Polish Personal Data Protection Authority (address: Urząd Ochrony Danych Osobowych, ul. Stawki 2, 00- 193 Warszawa, website: <https://uodo.gov.pl>).

The data subject is entitled to request access to its personal data, to request that it be rectified, deleted or that the processing thereof be limited, as well as to raise an objection to processing and, and to request that its data be transferred.

We will provide access to your personal data to the entities that support us by providing services, i.e., the ones that are going to process it at our order. These may include, for example, forwarding companies. We can show your personal data to the public authorities that combat frauds and abuses.

The source of personal data is the parcel sender.

The Controller will not use your personal data to make any automated decisions, including through the profiling referred to in art. 22 section 1 or 4 of the General Data Protection Regulation.

Article 22

Automated individual decision-making, including profiling

1. The data subject shall have the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or her.
2. Paragraph 1 shall not apply if the decision:
 - (a) is necessary for entering into, or performance of, a contract between the data subject and a data controller;
 - (b) is authorised by Union or Member State law to which the controller is subject and which also lays down suitable measures to safeguard the data subject's rights and freedoms and legitimate interests; or
 - (c) is based on the data subject's explicit consent.
3. In the cases referred to in points (a) and (c) of paragraph 2, the data controller shall implement suitable measures to safeguard the data subject's rights and freedoms and legitimate interests, at least the right to obtain human intervention on the part of the controller, to express his or her point of view and to contest the decision.
4. Decisions referred to in paragraph 2 shall not be based on special categories of personal data referred to in Article 9(1), unless point (a) or (g) of Article 9(2) applies and suitable measures to safeguard the data subject's rights and freedoms and legitimate interests are in place.

It is necessary to provide your personal data in order for us to be able to provide the service. Furthermore, the provision of the above-mentioned data is required by the manual for filling in customs declarations available at:

https://www.finance.mf.gov.pl/documents/766655/5638560/2_instrukcja_sad_v_16_do_u_kc_final.pdf.

If the above data is not entered in customs declarations or if it is incomplete, customs clearances will be impossible due to the fact that customs systems validate and reject the applications that do not include the data required by the law.